

with particularity, and each affidavit shall show affirmatively that the affiant, if sworn as a witness, can testify competently thereto." (Code Civ. Proc., § 585, subd. (d).)

Here, plaintiff merely states,

... Mr. Carter is owed approximately \$7,140 in rent collected but not received, \$2,400 in tenant security deposits, and \$1,200 in reserve funds, for a total of \$10,740, The Trust is owed approximately \$47,963.54 in rent collected but not received and \$10,310 in tenant security deposits across four properties, for a total of \$58,273.54.

(Carter Dec., ¶ 13.)

Simply stating in a declaration "defendant owes me \$X" is not adequate. Plaintiff must submit admissible documentary evidence establishing the amounts owed by A-Plus.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 9/21/2026 .
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: ***Chaoui v. 712 Financial Service LLC***
Superior Court Case No. 25CECG01784

Hearing Date: September 24, 2026 (Dept. 503)

Motion: By Defendant/Cross-Complainant 712 Financial Services LLC to Compel Plaintiff Khalid Chaoui's Responses to Form Interrogatories (Set Two); to Deem Admissions Admitted; and for Monetary Sanctions

Tentative Ruling:

To grant defendant/cross-complainant's motion to compel for Form Interrogatories (Set Two). Plaintiff/cross-defendant Khalid Chaoui is ordered to serve verified responses, without objections, to defendant/cross-complainant within 30 days of service of the minute order by the clerk.

To grant defendant/cross-complainant's request to deem Requests for Admissions admitted. The truth of the matters specified in the Requests for Admissions, Set One, are to be deemed admitted unless plaintiff Khalid Chaoui serves, before the hearing, a proposed response to the Requests for Admission that is in substantial compliance with Code of Civil Procedure section 2033.220.

To grant monetary sanctions against plaintiff/cross-defendant Khalid Chaoui in the total amount of \$645. Monetary sanctions are ordered to be paid to Clovis Law Group LLP within 30 calendar days from the date of service of the minute order by the clerk.

Explanation:

Motions to Compel

Plaintiff/cross-defendant has had sufficient time to respond to the discovery propounded by defendant/cross-complainant, and has not done so. Failing to respond to discovery within the 30-day time limit waives objections to the discovery, including claims of privilege and work product protection. (Code Civ. Proc., § 2030.290, subd. (a) [interrogatories]; Code Civ. Proc., § 2031.300, subd. (a) [production demands]; see *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905–906.) Here, no responses have been received.

Requests for Admissions

Defendant/cross-complainant served Requests for Admissions on plaintiff/cross-defendant on May 27, 2026. As of July 17, 2026, no responses had been received. The court has no information that any responses have been received as of the date of this ruling.

Failure to timely respond to requests for admissions results in a waiver of all objections to the requests, and upon proper motion the court *shall* deem them admitted. (Code Civ. Proc., § 2033.280.) The statutory language leaves no room for discretion. (*Tobin v. Oris* (1992) 3 Cal.App.4th 814, 828.) However, the court may relieve the party who fails to file a timely response if, before entry of the order deeming the requested matters admitted, the party in default 1) moves for relief from waiver and shows that the failure to serve a timely response was due to “mistake, inadvertence or excusable neglect; and 2) the party has served a response in “substantial compliance with Code of Civil Procedure Section 2033.220. (Code Civ. Proc., § 2033.280(a)-(c); see *Brigante v. Huang* (1993) 20 Cal.App.4th 1569, 1584.) Here, no responses have been received to date.

Sanctions

Regarding the interrogatories, where a party seeks monetary sanctions, the court “shall” impose such a sanction against the unsuccessful party, unless the court finds that party acted with substantial justification or other circumstances would render such sanctions as unjust. (Code Civ. Proc., § 2030.290, subd. (c).) Sanctions are mandatory against a party whose failure to respond timely necessitates a motion to deem admitted. (Code Civ. Proc., § 2033.280, subd. (c).) Pursuant to California Rules of Court, Rule 3.1030(a), this also applies where no opposition to the motion was filed. The court finds it reasonable to order monetary sanctions in the reduced amount of \$645, to include 1.5 hours at \$350 per hour in preparing the motions and \$120 in filing fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 9/22/2026.
(Judge's initials) (Date)